
Appeal Decision

Hearing held on 28 July 2026

Site visit made on 28 July 2026

by R Sabu BA(Hons), MA, BArch, PgDip, RIBA, ARB

an Inspector appointed by the Secretary of State

Decision date: 3rd September 2026

Appeal Ref: 6006128

Land at Former Ashfield Works, Westgate, Otley LS21 3AT

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Churchill Living Ltd against the decision of Leeds City Council.
 - The application Ref is 25/04310/FU.
 - The development proposed is redevelopment for retirement living accommodation for older people comprising 29 retirement apartments including communal facilities, access, car parking and landscaping, and a detached cottage (open market).
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Decision

1. The appeal is allowed and planning permission is granted for redevelopment for retirement living accommodation for older people comprising 29 retirement apartments including communal facilities, access, car parking and landscaping, and a detached cottage (open market) at Land at Former Ashfield Works, Westgate, Otley LS21 3AT in accordance with the terms of the application, Ref 25/04310/FU, subject to the conditions in the attached schedule.

Applications for costs

2. An application for costs was made by Churchill Living Ltd against Leeds City Council and by Leeds City Council against Churchill Living Ltd. These are the subject of separate decisions.

Preliminary Matters

3. A new National Planning Practice Framework (Framework) was published in August 2026 which replaces the previous Framework published in December 2024, and all other iterations. I have consulted the main parties and taken their comments into account in reaching my decision.
4. The appellant has submitted a planning obligation under section 106 of the Town and Country Planning Act 1990 (s106). As it is signed and dated, I have had regard to it in coming to my decision.
5. As the proposal is in a conservation area, I have had special regard to section 72(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 (the Act).

Main Issues

6. The parties are in agreement that the financial contributions secured in the planning obligation overcome the reasons for refusal relating to affordable housing and

public green space. From the evidence I agree that these issues have been overcome.

7. In addition, the reason for refusal relating to the detached cottage included reference to the living conditions of the future occupiers of the proposed cottage in relation to noise and nuisance from vehicular movements. The Council no longer wishes to defend this part of the reason for refusal. From the evidence I consider that the proposal would not result in unacceptable living conditions of future occupiers from noise and nuisance from vehicular movements. Therefore, the main issues are:
- the effect of the proposal on the living conditions of future occupiers with regard to private outdoor amenity space; and
 - the effect of the proposed detached cottage on the character and appearance of the site and whether the proposal would preserve or enhance the character or appearance of the Otley Conservation Area (CA).

Reasons

Background

8. The site is in Otley town centre and lies on part of the former Ashfield Works site, an engineering works from the late 19th century and early 20th century. The wider Ashfield Works site is allocated in the development plan which comprises the Leeds Unitary Development Plan (Review 2006) (UDP), Core Strategy (as amended by the Core Strategy Selective Review 2019) (Adopted November 2014 Amendments Adopted 11th September 2019) (CS), Leeds Local Plan Development Plan Document Site Allocations Plan as amended 2024 (Adopted July 2019) and the Otley Neighbourhood Plan 2018 - 2028 (NP).
9. The allocated site is subject to requirements set out in the Planning & Development Brief Ashfield Works, Westgate, Otley September 2012 (PDB) which provides an indication on the scope for change and the opportunities that exist and constitute supplementary guidance. The allocated site has been partly redeveloped to a care home to the rear of the site and conversion of industrial buildings to retail and residential units. The appeal site is currently vacant and contains soil from the redevelopment of the wider Ashfield Works redevelopment.
10. The proposal consists of a 3 storey building to accommodate retirement living apartments including communal facilities, access, car parking and landscaping and a detached dwelling.

Living conditions

11. The proposed ground floor landscaped areas and patios would be for communal amenity use. However, a substantial portion of the total garden area would be immediately adjacent to ground floor flats and therefore unlikely to be used by future residents of the upper floors. The Council clarified that their comments relating to Apartment 4 in their Hearing Statement was an error and should have referred to Apartment 9 which would have limited outdoor amenity space. In addition, part of the communal garden space would be likely to be occupied by planting to screen the adjacent car park and retaining walls. Accordingly, the size of the garden area most likely to be used by residents of the upper floors would be limited to the space to the east of the building.

12. Moreover, the proposed outdoor private amenity space would be significantly smaller than that required for non-family situations in Neighbourhoods for Living A Guide for Residential Design in Leeds December 2003 (NfL). The Green Space Guidance (GSG) states that older persons accommodation and supported living developments are usually higher density and so communal outdoor areas should total ¼ gross floor area, as set out in Leeds City Council Neighbourhoods for Living SPD.
13. I note the comments of the Inspector for the appeal at Wetherby¹ in relation to the NfL. However, while I agree that the NfL does not expressly address the requirements of a community for older persons, it is in line with the requirement for older persons accommodation as set out in the GSG. Therefore, while there is little explanation or justification for the requirement, it is a useful guide for assessing communal amenity space for retirement living accommodation.
14. The evidence indicates that while the retirement apartments would be available for persons over the age of 60, the average age is around 80 years. In addition, future residents are likely to use the space in a passive way, such as for sitting outdoors rather than for walking or other activities.
15. The proposed communal patio area outside the Owner's Lounge would be more likely to be used by future occupiers, compared with the rest of the garden space. I am also mindful that a condition could secure an additional seating area and footpaths within the garden than that indicated in the site plan. The indoor Owner's Lounge would also be available as amenity space for future occupiers.
16. However, a large proportion of the apartments would not benefit from a patio area or balcony, and the patio area outside the Owner's Lounge would be limited in size. Therefore, I consider that the outdoor communal seating area would not be a sufficient size to accommodate adequate seating and tables for the future occupiers.
17. In terms of the quality of the space, as discussed during the hearing, the ground levels of the garden area would be substantially below the ground levels of the Falcon Club building adjacent to the site and the adjacent building. Together with the three storey proposed apartment building, this would result in restricted outlook from the garden area which would feel enclosed. Therefore, even if additional seating area was provided to the south of the garden space, it would have an oppressive outlook.
18. I note the Appellant's extensive experience in providing accommodation for older persons, and the case studies provided. However, given the particular conditions of this site, the communal garden area would be a limited size and given its shape and relative ground levels, would feel confined.
19. I note the comments of the Inspectors for the decisions including at Fleet², Wigginton³, Bridport⁴ and Hertford⁵. These cases are generally in different locations and have different designs compared to the appeal scheme such that they are not directly comparable in terms of private amenity space.

¹ Appeal Ref: APP/N4720/W/24/3343107

² Appeal Ref: APP/N1730/W/20/3261194

³ Appeal Ref: APP/C2741/W/23/3314331

⁴ Appeal Ref: APP/D1265/W/25/3372602

⁵ Appeal Ref: APP/J1915/W/23/3318094

20. Although there would be a degree of overshadowing from the proposed and surrounding buildings and a difference in ground levels, given the age of the future residents who would be likely to prefer shade, I do not consider this particular matter to negatively affect their living environment.
21. Consequently, the proposal would not provide suitable living conditions for future occupiers with regard to private outdoor amenity space. Therefore, it would conflict with UDP Policy GP5 which requires proposals to seek to avoid problems of loss of amenity among other things and that proposals should have regard to the guidance contained in any framework or planning brief. It would also conflict with UDP Policy BD5 which requires all new buildings to be designed with consideration given to their own amenity and include usable space, among other things. In addition, the scheme would conflict with CS Policy P10, NP and PDB which seek high quality design.
22. The site is located in the town centre of Otley and is in close proximity to services, facilities and public transport. In addition, Manor Garth Park is an area of public open space a short distance from the site, accessed by a riverside path which passes near the boundary of the site. Although no direct link to the riverside path is provided as part of the scheme, the park is within a short walking distance of the site. Accordingly, Manor Garth Park is a realistic option for future occupiers seeking outdoor amenity space, albeit public rather than for exclusive use of residents of the scheme. Accordingly, the harm resulting from the conflict with the identified development plan policies would be limited.

Character and appearance and Otley CA

23. The site lies in the 'Area 4 Westgate/ Beech Hill' area of Otley CA. As described in the Otley Conservation Area Appraisal (OCAA), this area is the western gateway to the town centre and is part of traditional Otley. The special character of the CA as set out in the OCAA lies in its attractive stone-built historic core and a strong sense of place among other things. The historic interest of Westgate lies in it being one of the main routes into the centre of medieval Otley.
24. Westgate from Manor Square to Beech Hill Car Park has a pleasant traditional and commercial character primarily characterised by shopfronts on the ground floor with a mix of uses on the first floor. The buildings on Westgate generally have a range of heights though mostly 2 and 3 storeys, and varied shopfront treatments. The first floor windows along Westgate are generally vertically proportioned, though sizes, styles and materials vary. Overall, although there is variety in the streetscape, as the buildings are mostly 2 and 3 storey buildings with pitched roofs and of natural stone with slate roofs, the street has a pleasant traditional character.
25. Beech Hill Car Park is the first townscape gap on Westgate when heading west from the town centre. There are then 2 buildings which are single storey near the street with gable ends facing the road. The car park and these 2 buildings depart significantly from the prevailing character of the street and break up the continuous street frontage along Westgate. The part of the appeal site near the street forms the next townscape gap and is followed by the site access and a terrace which includes a dwelling on the corner. Accordingly, the character of the north side of Westgate changes significantly from Beech Hill Car Park heading westward.
26. The terrace on the other side of the site access comprises a mix of commercial and residential uses, most notably the dwelling at No 23 Westgate, which lies on the

corner the site access and Westgate. The streetscape from the site westward has a more residential character than the area to the east of the site. Accordingly, the site lies in a transitional point on Westgate in terms of the changing character along the street.

27. The townscape gaps on the north side of the CA at the site of the former cinema and Beech Hill car park are identified in the OCAA. The site of the former cinema forms part of the site of the proposed detached dwelling. The site is currently being used to park cars on an ad hoc basis, and it is common ground between the parties that the current appearance of the site has a negative impact on the Westgate street scape. From the evidence and my observations during the site visit, I consider that the site provides a negative contribution to the significance of the CA.
28. The parties agree that there is an opportunity for appropriately designed development to reinstate an enclosed street scene and enhance the character and appearance of Westgate. Furthermore, the OCAA identifies opportunities including the regeneration of derelict sites with well-designed modern/contemporary infill development, in traditional local materials.
29. The proposal for the part of the site fronting Westgate is for a detached dwelling. There are few other detached dwellings in the area around the site or along this part of Westgate such that this type of development does not form part of the existing character of this part of Westgate.
30. However, the 2 storey, pitched roof of the proposed dwelling would be in keeping with the scale and form of the surrounding buildings. In addition, the proposed use of natural stone and slate would be in harmony with the materials prevalent in the surrounding area.
31. The Urban Design Framework Drawing in the PDB shows a detached building on the site annotated as new development creating active frontage onto Westgate (two storey). The development plan appears not to include a definition of active frontage. The Appellant's evidence indicates that the Building for a Healthy Life (May 2026) document defines active frontage as when buildings present front doors and plentiful windows to the street so activity and life are visible and the public realm feels safe. The National Design Guide (NDG) defines active frontage as the front of a building with openings onto the space that generate activity and engagement between the building interior and the space outside, particularly entrances. Neither definition precludes residential uses.
32. The front elevation of the proposed cottage would present a front door and kitchen window to the street at ground level. Therefore, the proposal would include active frontages in accordance with the requirement in the PDB and NDG.
33. Moreover, while many of the surrounding properties along Westgate have shopfronts, some present front doors and windows to the street such as the public house near the site. Accordingly, the proposed design of the front elevation with a front door and windows would not appear out of character in the streetscape.
34. The ground floor window of the proposed cottage would have a smaller height than the other proposed windows due to it servicing a kitchen rather than living space as discussed during the hearing. However, the other windows along the street have varied sizes and proportions such that this feature would not appear discordant in

- the area. The proposed first floor windows would have vertically proportioned frames that would appear in keeping with that of the surrounding buildings.
35. The historic buildings along Westgate generally have large window openings compared with the walls on the elevations facing the street. However, given the varying heights and window sizes of the buildings along the street, the proposed solid to void ratio on the front elevation of the proposed cottage would not appear discordant in the street scene.
36. The NP Policy BE9 requires proposals to demonstrate regard for a number of design principles including sliding-sash timber window frames and panelled timber doors. The proposed drawing for the cottage does not indicate materials although the Appellant has indicated that the proposed windows would be uPVC casements. The materials could be secured via a suitably worded condition such that the proposal would not conflict with this particular part of the Policy.
37. The plan form of the proposed cottage, with kitchen at the front of the building and living, dining area to the rear may not reflect the layout of historic cottages in Otley as discussed during the hearing. The location of the bay window may also be a result of the internal layout. However, as discussed above, given the variation in window size and style along Westgate, and that the proposed window frames would have vertical proportions in line with the windows of the surrounding area, I find that the proposed windows would not appear discordant.
38. The proposed bay window would be on the side elevation. Although bay windows are not a common feature along Westgate, there are examples of oriel windows in the area. In addition, the proposed bay window would add interest to the side elevation which would be in a prominent location at the access to the site and would be seen on approach to the town centre. As other gable elevations in the vicinity of the site appear functional in terms of composition and distribution of windows, the proposed cottage would not appear out of place in this respect.
39. The proposed gable would have a string course at eaves level that would create a triangular detail. A stone band is present in nearby buildings such as the terrace to the west of the site, although it is at the bottom of the first floor windows rather than at eaves level. The proposed apartment building to rear of the cottage would feature stone banding across the top of each floor and at eaves level. Accordingly, while the location of the stone banding or string course would not be in keeping with that found on Westgate, it would reflect the apartment block to the rear which would be seen in views with the cottage through the access the road on approach to the site and town centre.
40. The traditional buildings in Otley generally have at least a course of masonry between the top of the upper floor windows and eaves level. The proposed stone banding at eaves level on the gable elevation would continue around the building. The single course of masonry on the front elevation at eaves level would be in keeping with some properties along Westgate, in particular the terrace to the west of the site. Therefore, this element would not appear discordant in the street scene.
41. I note the evidence regarding boundary treatment and canopy details. These matters could be adequately addressed via suitable worded conditions. During the hearing the Appellant clarified that there would not be a change in material at the base of the ground floor elevations.

42. Overall, the proposed building would infill the townscape gap appropriately in terms of scale, form and building line. In addition, the proposed materials of natural stone and slate roof would be in keeping with the character of the surrounding area.
43. The site, being a townscape gap and given its current use for ad hoc parking, currently provides a negative contribution to the significance of the CA. Moreover, the site lies in a transitional area along Westgate in terms of character. Therefore, while the proposed details may not replicate those found in the surrounding area and traditional cottages found in Otley, the building would appear traditional in style and would not detract from the character and appearance of the surrounding area.
44. Moreover, the parties are in agreement that the design and built form of the Retirement Living apartment building which would occupy the majority of the site would be an appropriate design and contextual response to the site and its setting and as a result would be a positive addition to this part of the Otley Conservation Area.
45. I note the evidence regarding a previous appeal scheme on the site that included commercial units at ground floor. However, I have necessarily assessed the scheme before me.
46. Accordingly, the proposed detached cottage would not harm the character and appearance of the site and would preserve the character and appearance and significance of the Otley CA. The scheme as a whole would enhance the significance of the CA.
47. Therefore, the scheme would not conflict with UDP Policies GP5 and N19, CS Policies P10 and P11 and NP Policies MU2, and BE9 which together seek proposals that have regard to the guidance contained in any framework or planning brief prepared for the site or area, preserve or enhance the character or appearance of the historic assets and environment and Otley CA, and demonstrate a positive response to its setting in terms of scale, form, materials and the nature of construction. In addition, the scheme would not conflict with the Otley Conservation Area and Management Plan and the PDB.
48. Although NP Policy BE8 is cited in the decision notice, as it relates to non-designated heritage assets, it is not directly relevant to this main issue.

Other Matters

49. I note local concerns including regarding parking and loss of mature trees. Given the proposal's town centre location and proximity to local services and facilities, I am satisfied that the proposal would provide an appropriate number of car parking spaces.
50. A number of trees at the boundary of Beech Hill Car Park are proposed to be felled. Planning permission⁶ was granted for the removal of the trees as part of the original planning consent for the redevelopment of the Ashfield Works site.

Planning balance

51. Framework Policy S4 states that development proposals within settlements should be approved unless the benefits of doing so would be substantially outweighed by

⁶ Council reference: 17/07108/FU, dated 2019

any adverse effects, when assessed against the national decision-making policies in the Framework.

52. I note the Government's objective to support the delivery of a substantial increase in the supply of homes and the Framework requires substantial weight to be given to the benefits where a development proposal would make better use of vacant and underutilised land and buildings, among other things.
53. Paragraph 1 of Framework Policy L3 states that development proposals should make efficient use of land, taking into account the identified need for different types of housing and other development, local market conditions, the availability of infrastructure (including that supporting sustainable transport modes) and its scope for improvement, a site's connectivity and the importance of securing well-designed, attractive and healthy places.
54. Framework Policy HO7 states that substantial weight should be given to the benefits of providing homes which will contribute towards meeting the evidenced accommodation needs of the community, as identified through needs assessments prepared for the area of the local planning authority and other relevant evidence. This includes, but is not limited to, homes needed for different groups assessed under policy HO1. Framework Policy HO1 identifies older people (including those who require retirement housing, housing-with-care and care homes) as one of the groups referred to.
55. As the Leeds City Council Strategic Housing Market Assessment (adopted 2025) identifies a need for older persons accommodation relative to the current supply over the period of 2022-2040, I attribute substantial weight to the benefit of providing 29 dwellings for older people.
56. Given the scale of the proposal, I attach moderate weight to the provision of financial contributions relating to affordable housing and public open space.
57. No viability evidence is before me to demonstrate that the proposal is the smallest viable scheme for the site. However, given the site constraints and town centre location as well as position in the CA, it is likely that no alternative viable scheme could result in a substantially larger outdoor communal space. I attribute this point minor weight in favour of the scheme.
58. The proposal would result in harm to the living conditions of neighbouring occupiers and would therefore conflict with UDP Policies GP5 and BD5, CS Policy P10, NP and PDB. Given the site's town centre location and close proximity to Manor Garth Park, the harm resulting from this conflict would be limited.
59. Accordingly, the benefits of the proposal would not be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework. Framework Policy S4 directs that such proposals in settlements should be approved. This material consideration warrants a decision other than in accordance with the development plan and indicates that the appeal should be allowed.

Planning obligation

60. The submitted s106 secures financial contributions in relation to affordable housing and public open space. The obligations are necessary and reflect the relevant tests

set out in Regulation 122 of the Community Infrastructure Levy (2010). As a result, I have taken the s106 into account in reaching my decision.

Conditions

61. The conditions relating to time limit, specifying plans and age restriction are necessary in the interests of certainty. Conditions relating to off-site highway works and areas used by vehicles are necessary for highway safety.
62. In order to safeguard the living conditions of neighbouring occupiers, the condition requiring a statement of construction practice is necessary. The condition relating to refuse store is necessary to safeguard the living conditions of future occupiers.
63. Conditions relating to materials, windows, doors and canopy, external plumbing, removing permitted development rights, landscaping and boundary treatment are necessary to safeguard the character and appearance of the CA.
64. Conditions relating to contamination are necessary given the historic industrial use of the site. In the interests of flood risk, conditions relating to drainage are necessary.
65. As discussed during the hearing, the area to be occupied by the proposed cottage would be likely to be used to store materials during the construction phase. Therefore, the suggested condition requiring the completion of the proposed cottage prior to the occupation of 50% of the retirement apartments, rather than prior to the first occupation of the retirement apartments is necessary and reasonable.
66. The suggested condition relating to electric vehicle charging points is not necessary as the provision is required under building regulations.

Conclusion

67. Consequently, there are material considerations to warrant a decision other than in accordance with the development plan. For the reasons given above, the appeal should be allowed.

R.Sabu

INSPECTOR

Schedule of Conditions

- 1) The development hereby permitted shall begin not later than 3 years from the date of this decision.
- 2) The development hereby permitted shall be carried out in accordance with the following approved plans: 50015OL/PL01, 50015OL/PL02A, 50015OL/PL03, 50015OL/PL04, 50015OL/PL05, 50015OL/PL06, 50015OL/PL07, 50015OL/PL08, 50015OL/PL09, and 50015OL/PL11
- 3) Prior to occupation of the development, the off-site highway works as shown in principle on plan 50015OL/PL02A comprising a 2.0m wide footpath along the site frontage, new priority-controlled junction and signalised pedestrian crossing on the A659 Westgate shall be fully delivered.
- 4) Development shall not be occupied until all areas shown on the approved plans to be used by vehicles, including roads, footpaths, loading and servicing areas and vehicle parking space have been fully laid out, surfaced and drained such that loose materials and surface water does not discharge or transfer onto the highway. These areas shall not be used for any other purpose thereafter.
- 5) Development shall not commence until a Statement of Construction Practice has been submitted to and approved in writing by the local planning authority, the Statement of Construction Practice shall include full details of:
 - a) The construction vehicle routing, means of access, location of site compound, storage and parking (including workforce parking), means of loading and unloading of all contractors' plant, equipment, materials and vehicles and associated traffic management measures.
 - b) Methods to prevent mud, grit and dirt being carried on to the public highway from the development hereby approved.
 - c) Measures to control the emissions of dust and dirt during construction.
 - d) How the statement of construction practice will be made publicly available by the developer.

The approved details shall be implemented at the commencement of works on site and shall thereafter be retained and employed until completion of the works on site.

The Statement of Construction Practice shall be made publicly available for the lifetime of the construction phase of the development in accordance with the approved method of publicity.
- 6) The approved details for the provision of refuse stores shown on plan 50015OL/PL02A (including siting, materials and means of enclosure) and (where applicable) storage of wastes and access for their collection shall be implemented in full before the use commences and shall be retained thereafter as such for the lifetime of the development.
- 7) Construction of external walls and roofs to any building subject of this permission shall not take place until details and samples of all external walling and roofing materials have been submitted to and approved in writing by the local planning authority. Samples, including a 1m square panel, shall be made available on site prior to the commencement of building works, for

- inspection by the local planning authority which shall be notified in writing of their availability. The building works shall be constructed from the materials thereby approved.
- 8) Prior to their installation, full details of all external doors and windows including reveals, headers and sills shall be submitted to and approved in writing by the local planning authority and works carried out in accordance with the approved details.
 - 9) Prior to their installation, details of all gutters, downpipes and all other external plumbing have been submitted to and approved in writing by the local planning authority. These items shall then be provided in accordance with the approved details prior to the occupation of the development and retained for the lifetime of the development.
 - 10) Development (excluding demolition) shall not commence until a Phase I Desk Study has been submitted to, and approved in writing by, the local planning authority and:
 - (a) Where the approved Phase I Desk Study indicates that intrusive investigation is necessary, development (excluding demolition) shall not commence until a Phase II Site Investigation Report has been submitted to and approved in writing by the local planning authority;
 - (b) Where remediation measures are shown to be necessary in the Phase I/Phase II Reports and/or where soil or soil forming material is being imported to site, development (excluding demolition) shall not commence until a Remediation Strategy demonstrating how the site will be made suitable for the intended use has been submitted to and approved in writing by the local planning authority. The Remediation Strategy shall include a programme for all works and for the provision of Verification Reports.
 - 11) If remediation is unable to proceed in accordance with the approved Remediation Strategy, or where significant unexpected contamination is encountered, or where soil or soil forming material is being imported to site, the local planning authority shall be notified in writing immediately and operations on the affected part of the site shall cease. The affected part of the site shall be agreed with the local planning authority in writing. An amended or new Remediation Strategy and/or Soil Importation Strategy shall be submitted to and approved in writing by the local planning authority prior to any further remediation works which shall thereafter be carried out in accordance with the revised approved Strategy. Prior to the site being brought into use, where significant unexpected contamination is not encountered, the local planning authority shall be notified in writing of such.
 - 12) Remediation works shall be carried out in accordance with the approved Remediation Strategy. On completion of those works, the Verification Report(s) shall be submitted to the local planning authority in accordance with the approved programme. The site or phase of a site shall not be brought into use until such time as all verification information has been approved in writing by the local planning authority.
 - 13) Each of the apartments hereby permitted shall be occupied only by:
 - (i) Persons aged 60 or over; or

- (ii) A spouse/or partner (who is themselves over 55 years older) living as part of a single household with such a person specified in (i); or
 - (iii) Persons who were living in one of the apartments as part of a single household with a person identified in (i) who has since died.
- 14) Prior to the occupation of 50% of the retirement apartments the detached cottage fronting Westgate shall be completed and available for occupation.
- 15) Notwithstanding the provisions of the Town and Country Planning (General Permitted Development) (England) Order 2015 (or any Orders revoking or re-enacting that Order with or without modification) planning permission shall be obtained before any extensions, dormer windows, outbuildings and or amendments to boundary treatments are erected to the detached cottage.
- 16) Prior to the first occupation of the apartment building, a plan showing detailed planting, paths and seating arrangements in accordance with the landscaping plans and schedule JBA 25 – 126 -SK01 Rev E and JBA 25 – 126 -SK02 Rev E, shall be submitted to and approved in writing by the local planning authority. The proposed scheme shall be carried out in accordance with the approved details.
- 17) All planting, seeding or turfing comprised in the approved details of landscaping shall be carried out in the first planting and seeding seasons following the occupation of the buildings or the completion of the development, whichever is the sooner; and any trees or plants which within a period of 5 years from the completion of the development die, are removed or become seriously damaged or diseased shall be replaced in the next planting season with others of similar size and species.
- 18) The development shall be carried out in accordance with the details shown on the submitted plan, " 'Preliminary Drainage Layout' 1537 01-PDL-1001 (revision B) dated 30/06/2025 that has been prepared by AWP" and completed prior to first occupation of the retirement apartment building.
- 19) No development shall commence until a scheme detailing surface water drainage works has been submitted to and approved in writing by the local planning authority. The works shall be implemented in accordance with the approved scheme before the development is brought into use.
- 20) Prior to installation details of all boundary walls and railings shall be submitted to and approved in writing by the local planning authority. The boundary treatment shall be carried out in accordance with the approved details.

END OF SCHEDULE

APPEARANCES

FOR THE APPELLANT:

Sasha White KC – Counsel

Matthew Shellum – Planning Issues

Mr. Paul White - Managing Director, HAPRO Ltd (Heritage)

Rob Jackson, Group Design Director of Planning Issues Ltd; (Design)

FOR THE LOCAL PLANNING AUTHORITY:

Lawrence Hill – Principle Planning Officer, Leeds City Council

Stephen Varley – Principle Design Officer, Leeds City Council

Philippa Plumtree-Varley, Leeds City Council

INTERESTED PARTIES:

Jo Kemp - Land owner representative

DOCUMENTS

Appeal decision

Suggested conditions 28.07.26

Suggested conditions via e-mail

Signed and dated legal agreement

Council comments on the Framework August 2026

Appellant comments on the Framework August 2026